

Amendment No. 1 to SB2430

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2430

House Bill No. 2126*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-14-406, is amended by adding the following new subsection:

(f)

(1) A person commits aggravated criminal trespassing who:

(A) Engages in camping, as defined in § 39-14-414, on private property and the person knows or reasonably should know that the person does not have the consent of the property owner; and

(B) As a result of the camping, the property is damaged, vandalized, defaced, or littered upon.

(2)

(A) Aggravated criminal trespassing in violation of subdivision (f)(1) is a Class A misdemeanor. If the sentencing court finds that the property owner has incurred expenses to clean or repair the damage caused by a violation of this subsection (f), the defendant must be punished by the following mandatory minimum periods of confinement, to be served at one hundred percent (100%):

(i) For a first offense, confinement for not less than thirty (30) days; or

(ii) For a second or subsequent offense, confinement for not less than sixty (60) days.

(B)

(i) The mandatory minimum sentences required by subdivision (f)(2)(A) do not prohibit a person sentenced pursuant to this subdivision (f)(2) from participating in a drug or recovery court that is certified by the department of mental health and substance abuse services or another licensed treatment program.

(ii) Any person participating in such a court or program may receive sentence credit for up to the full minimum required by subdivision (f)(2)(A).

(iii) For persons sentenced under subdivision (f)(2)(A) with clinical assessment results indicating the need to participate in a drug or recovery court or treatment program, the court shall strongly consider ordering service of the sentence through participation in a drug or recovery court or program instead of through confinement, unless the court determines the person is not suitable for, or otherwise cannot participate in, such a court or program.

(3) In addition to any other penalty, the sentencing court may require the defendant to clean or repair the damage to the private property that resulted from the offense.

(4) A property owner who is a victim of aggravated criminal trespassing in violation of subdivision (f)(1) is not liable to a political subdivision of this state or any agency associated with a political subdivision for the costs of cleaning or repairs required as a result of the offense. The court may require the cost associated with such cleaning or repairs to be paid by the defendant as restitution. This subdivision (f)(4) does not establish a duty for any political

subdivision or agency associated with a political subdivision to clean or repair private property.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.